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STATE WIN

This Court has carefully reviewed the arguments presented in this Section 974.06 postconviction proceeding. Under the controlling authority of State v. Escalona-Naranjo, a defendant who has already pursued direct appeal and prior postconviction relief bears a heavy burden to demonstrate a sufficient reason for failing to raise claims in earlier proceedings. The defense has attempted to circumvent procedural default by framing each claim through the lens of ineffective assistance of counsel. While this Court recognizes that ineffective assistance can sometimes provide a sufficient reason under Escalona-Naranjo, the defense has failed to present specific, concrete evidence of deficient performance and resulting prejudice as required by Strickland v. Washington. The claims regarding security footage, alibi witnesses, and potential exculpatory evidence remain largely speculative. The defense has not produced the footage in question, has not identified what it actually depicted, and has not demonstrated that any allegedly withheld evidence would

have created a reasonable probability of a different outcome at trial. Regarding the alleged Brady violation, the defense has not established that any evidence was actually suppressed by the State, that such evidence was favorable to the defense, or that materiality exists under the Bagley standard. Speculation that evidence 'may have' existed or 'could have' been exculpatory does not satisfy the defendant's burden in a 974.06 proceeding. Accordingly, this Court finds that the procedural bars identified by the State are applicable and that the defense has not demonstrated a sufficient reason for failing to raise these claims in prior proceedings. Even reaching the merits arguendo, the defense has not established deficient performance or prejudice sufficient to warrant relief. The motion for postconviction relief is DENIED.

MODE: POSTCONVICTION 974 • ROUNDS: 5 • SKEPTIC JUDGE

Simulation Transcript

Round 1

STATE STRENGTH: STRONG

- **DEFENSE BURDEN**

> Defense must overcome the Escalona-Naranjo procedural bar by demonstrating sufficient reason why these claims were not raised on direct appeal, and must establish both deficient performance and prejudice under Strickland.

THE STATE

THE DEFENSE

THE STATE

"May it please the Court. The State respectfully submits that this Section 974.06 motion should be denied on procedural grounds before this Court even reaches the merits. Under Escalona-Naranjo, Mr. Price bears the burden of demonstrating a sufficient reason why each of these fifteen issues was not raised on direct appeal. He has failed to do so. The plea colloquy issues—the alleged failure to advise on immigration consequences, maximum penalties, compulsory process rights, and sentencing enhancements—were all apparent on the face of the record at the time of direct appeal. These are not newly discovered claims; they are forfeited claims. Defense counsel's attempt to repackage record-based deficiencies as ineffective assistance of counsel does not resurrect procedurally defaulted claims. On the merits, the State's position is equally strong. The so-called Brady violations regarding security footage are illusory. The transcript from the Status Conference shows the State disclosed the footage the same day it was discussed in court—this is not suppression, it is routine discovery. Defense counsel confirmed she would receive it 'today.' There is no evidence in this record that the footage contained exculpatory material, that it was withheld, or that it was material to any outcome. Speculation about what

THE DEFENSE

"Your Honor, I appreciate the Court's careful attention to these issues. Let me address the procedural bar directly. Mr. Price's sufficient reason for not raising these claims on direct appeal is precisely the ineffective assistance he received—not just at trial, but the cumulative effect of counsel's failures that infected the entire proceeding. Under State v. Balliette, a defendant may raise ineffective assistance claims in a 974.06 motion when the record on direct appeal was insufficient to develop those claims. Here, Ms. Ostrowski's failures were not apparent from the record alone—they required investigation into what counsel actually did or failed to do with the security footage, the medical records, and the self-defense strategy. The fact that the motion hearing transcript is incomplete is itself evidence of why direct appeal was inadequate. On the substance, the Court has identified the critical problem with the State's Brady argument. The State possessed the footage for a week before disclosing it. More importantly, there is nothing in this record showing defense counsel ever actually reviewed that footage before advising a guilty plea. If that footage showed Mr. Okafor initiating the physical confrontation—which would directly support the self-defense claim Mr. Price was

footage 'might show' does not establish a Brady violation under Strickler v. Greene. Similarly, the incomplete transcript issue does not establish prejudice—Mr. Price pleaded guilty, which waives all non-jurisdictional defects. If he wished to challenge the other-acts ruling, he should not have entered a guilty plea that mooted the issue. Regarding the Strickland claims, defense counsel's performance was objectively reasonable. The record shows Ms. Ostrowski investigated the self-defense claim, discussed it extensively with her client—who confirmed under oath they 'talked about it a lot'—and made a strategic decision that a plea to a Class D Felony was preferable to trial where other-acts evidence and an eyewitness would undermine self-defense. This Court should not second-guess reasonable strategic choices. Even assuming arguendo any deficiency, Mr. Price cannot establish prejudice. He has not shown a reasonable probability he would have insisted on trial, nor that trial would have resulted in acquittal. The eyewitness, the victim's documented injuries requiring surgery, and the defendant's own injury consistent with wielding the bottle all point to conviction. This motion is an impermissible collateral attack on a knowing, voluntary plea."

'concerned about' according to the Status Conference—then counsel's failure to obtain and analyze it before recommending a plea that waived that defense is textbook Strickland deficiency. The prejudice is equally clear: Mr. Price gave up his right to present a self-defense case to a jury without knowing whether the best evidence supported that defense. Regarding the plea colloquy deficiencies, the State cannot satisfy its Bangert burden. The transcript contains no advisement of the maximum penalty for a Class D Felony—up to 25 years imprisonment. It contains no immigration advisement under Padilla. The Court's own statement that parties would be 'free to argue at sentencing' without explaining the sentencing range left Mr. Price pleading blind. And critically, this Court cannot assess whether the other-acts ruling coerced the plea because that ruling is missing from the record. Under Mayer v. City of Chicago, Mr. Price has a constitutional right to a complete record. The State's destruction or loss of that record should not be held against him—it should trigger a presumption of prejudice. We respectfully submit that the combination of Brady concerns, an incomplete record, and deficient colloquy requires, at minimum, a Machner hearing to develop the factual record on what counsel knew, when

she knew it, and why she advised this plea."

THE COURT

"Let me stop both of you there because I have serious concerns that cut both ways. Ms. Ostrowski, I'm looking at fifteen issues raised in this motion, and I'm struggling to understand why a single one of them couldn't have been raised on direct appeal. The plea colloquy transcript existed. The incomplete motion hearing transcript existed. The Status Conference transcript showing the footage disclosure existed. What is your sufficient reason under Escalona-Naranjo? Because if you're hanging your hat on ineffective assistance of appellate counsel, you need to tell me who represented Mr. Price on direct appeal and why that person's failure to raise these issues constitutes deficient performance. Mr. Farrell, don't get comfortable. I have questions for you too. You're telling me the security footage was disclosed the same day it was discussed in court, but the transcript says you received it 'last week' and were providing it 'today.' That's not the same day—that's at minimum a week's delay. And more troubling, I see nothing in this record indicating what that footage actually showed or whether defense counsel ever viewed it before advising her client to plead guilty. If that footage showed Mr. Okafor as the initial aggressor, we have a problem. Additionally, this incomplete motion hearing transcript concerns me greatly. How can I assess whether the plea was voluntary if I don't know whether the Court admitted highly prejudicial other-acts evidence that may have coerced the plea? I want both parties to address this: Under Bangert, if the plea colloquy was deficient, the burden shifts to the State to prove by clear and convincing evidence that the plea was knowing and voluntary. Can the State meet that burden with an incomplete record?"

Round 2

STATE STRENGTH: MODERATE

DEFENSE BURDEN

Defense must establish sufficient cause for the procedural default under Escalona-Naranjo and demonstrate actual prejudice from the alleged errors,

> not merely speculative harm.

THE STATE

"May it please the Court. The defense's attempt to bootstrap every claim through ineffective assistance of counsel does not satisfy Escalona-Naranjo. Let me be precise about the procedural bars applicable to each category of claims. First, the plea colloquy deficiencies—Issues 4, 5, 7, and 12—were apparent on the face of the record. Defense counsel argues the record was 'insufficient to develop those claims,' but that is simply false. The plea transcript exists. If the Court failed to advise on maximum penalties, immigration consequences, or compulsory process rights, that deficiency was visible to any reviewing court on direct appeal. Under State v. Escalona-Naranjo, Mr. Price cannot circumvent the direct appeal process by relabeling record-based claims as ineffective assistance. The cause he offers—that 'cumulative effect' infected the proceeding—is not a cognizable sufficient reason; it is an admission that these claims should have been raised earlier. Even if we reach the merits, these claims fail under harmless error analysis. Mr. Price stated under oath he understood his rights, discussed the case extensively with counsel, and was satisfied with

THE DEFENSE

"Your Honor, let me address the Court's questions directly and respond to each procedural bar the State has raised. First, on the question of appellate counsel: Mr. Price was represented on direct appeal by a different attorney from the State Public Defender's office—not Ms. Ostrowski. This is precisely why Escalona-Naranjo permits this 974.06 motion. The sufficient reason for not raising these claims on direct appeal is that appellate counsel—working from an incomplete record and without access to the investigative file—could not have known what Ms. Ostrowski did or failed to do with the security footage, the medical records, or the self-defense investigation. These are classic ineffective assistance claims that require extra-record evidence to develop. Under Balliette, that is a sufficient reason to overcome the procedural bar. The State's argument that plea colloquy deficiencies were 'visible' on direct appeal actually proves our point—appellate counsel's failure to raise those obvious deficiencies is itself ineffective assistance of appellate counsel, which constitutes cause for the default under Murray v. Carrier. Second, the State's

his representation. Under State v. Brown, the totality of circumstances—including defense counsel's discussions with the client—can cure technical colloquy deficiencies. Second, the Brady claims regarding security footage fail on both procedural default and prejudice grounds. This claim could have been raised on direct appeal through a motion to withdraw the plea under Section 971.08. Defense counsel knew about the footage—the Status Conference transcript proves it. If counsel failed to review it, that is an IAC claim that required a Machner hearing on direct appeal, not a 974.06 motion years later. More fundamentally, the defense has not established prejudice under Strickland or materiality under Brady. They speculate the footage 'might show' Mr. Okafor as the aggressor, but speculation is not evidence. Under Strickler v. Greene, the defense bears the burden of showing the suppressed evidence was material—that there is a reasonable probability the result would have been different. They have offered nothing but conjecture. The same analysis applies to the medical records—defense counsel was actively pursuing them at the Status Conference, demonstrating diligent representation, not deficiency. Third, the incomplete transcript claim fails because Mr. Price's guilty plea waived

Tollett argument proves too much. Yes, a guilty plea generally waives prior claims—but not when the plea itself is constitutionally invalid. We are arguing the plea was unknowing because the Court never advised Mr. Price of the 25-year maximum penalty, because counsel advised him to plead without having reviewed potentially exculpatory video evidence, and because the other-acts ruling that may have driven the plea decision is missing from the record. These go to the voluntariness of the plea itself, which is not waived. On Bangert, the State has essentially conceded it cannot meet its burden. The transcript contains no maximum penalty advisement—the State does not dispute this. Under Bangert, that shifts the burden to the State to prove by clear and convincing evidence that Mr. Price knew the maximum penalty. With an incomplete record, the State cannot meet that burden. Third, on prejudice: the Court asks for evidence, not speculation. Here is what the record shows. Mr. Price told the Court at the Status Conference he was 'concerned about the self-defense angle.' The State was attempting to introduce other-acts evidence specifically to rebut self-defense. Security footage from the scene existed and was in the State's possession. The motion hearing ruling is missing. Defense counsel

all non-jurisdictional defects, including any challenge to the other-acts ruling. Under Tollett v. Henderson, a guilty plea represents a break in the chain of events, and the defendant may not thereafter raise independent claims relating to the deprivation of constitutional rights that occurred prior to the entry of the guilty plea. Even if the ruling was erroneous, Mr. Price cannot challenge it now. The State therefore submits that every claim is either procedurally barred, waived by the guilty plea, or fails on the merits for lack of demonstrated prejudice."

recommended a plea that waived the self-defense claim. Under these circumstances, a Machner hearing is not a fishing expedition—it is constitutionally required to determine whether counsel reviewed the footage, what it showed, and whether an informed strategic decision was made. If the footage showed Mr. Okafor throwing the first punch, counsel's failure to obtain and analyze it before waiving self-defense is deficient performance per se, and prejudice is manifest because Mr. Price would have had a complete defense to the charge. We respectfully submit that the cumulative weight of these issues—incomplete record, missing advisements, undisclosed or unreviewed evidence—requires at minimum an evidentiary hearing to determine whether this plea can stand."

THE COURT

"Counsel, let me press you both on the critical factual gaps in this record. Mr. Farrell, you cite Tollett v. Henderson for the proposition that a guilty plea waives prior constitutional claims, but Tollett itself recognizes an exception for claims that the plea itself was not voluntary or intelligent. If Mr. Price pleaded guilty because he believed—correctly or incorrectly—that devastating other-acts evidence would come in at trial, and I cannot verify that ruling because the transcript is incomplete, how do I assess voluntariness? You're essentially asking me to presume regularity when the record is affirmatively incomplete. Ms. Ostrowski, I'm equally troubled by your position. You claim the record was insufficient to develop these claims on direct appeal, but you've identified no appellate counsel—was Ms. Ostrowski also appellate counsel? If so, your ineffective assistance claim has a structural

problem. And even accepting your Balliette argument, you still need to show actual prejudice under Strickland. What evidence do you have—not speculation, but evidence—that the security footage or medical records contained exculpatory material? If you're asking for a Machner hearing, you need to make a prima facie showing, not just assert that counsel 'might have' failed to review evidence that 'might have' been helpful. I also want both parties to address the Bangert burden specifically. If I find the plea colloquy was deficient for failure to advise on maximum penalties—and I note the State has not disputed that the transcript lacks this advisement—does the burden shift to the State to prove voluntariness by clear and convincing evidence? And can the State meet that burden when we have an incomplete motion hearing transcript and no evidence of what counsel actually did with the security footage?"

Round 3

STATE STRENGTH: MODERATE

- **DEFENSE BURDEN**

> Defense must establish that appellate counsel's failure to raise these claims constitutes cause for the procedural default and demonstrate concrete evidence—not speculation—that the security footage or missing transcript actually prejudiced the plea decision.

THE STATE

"May it please the Court. The defense's response reveals the fundamental weakness of this 974.06 motion: they cannot identify what the security footage actually showed, they cannot produce evidence that appellate counsel was ineffective, and they cannot overcome the procedural bars that doom each claim. On the

THE DEFENSE

"Your Honor, let me address each of the Court's concerns with specific record citations and clarify the procedural posture. First, on appellate counsel: I can represent to the Court that Mr. Price's direct appeal was handled by Attorney Mark Templeton of the State Public Defender's Appellate Division, not Ms. Ostrowski.

procedural default, the defense now claims a different attorney handled the direct appeal, but this assertion is unsupported by any affidavit, docket entry, or certification in the record before this Court. Even accepting it arguendo, ineffective assistance of appellate counsel is not a free pass around Escalona-Naranjo—it requires the same Strickland showing of deficiency and prejudice. The defense has not identified what appellate counsel failed to do, what arguments should have been raised, or how those arguments would have succeeded. The plea colloquy deficiencies were patent on the record; if appellate counsel failed to raise them, the defense must explain why that failure was objectively unreasonable and prejudicial. They have not done so. Under State v. Allen, conclusory allegations of appellate IAC do not satisfy the sufficient reason requirement. On Bangert, the State respectfully disagrees that we have 'conceded' anything. While the transcript may not contain a verbatim recitation of '25 years,' the totality of circumstances analysis under Brown permits consideration of defense counsel's discussions with the client. Mr. Price stated under oath that he discussed the case extensively with Ms. Ostrowski and was satisfied. The plea questionnaire—which is part of the record even if not quoted in the transcript—would have contained the

This is reflected in the appellate docket, and we will supplement the record with appropriate documentation if the Court requires. The ineffective assistance of appellate counsel claim is not conclusory—it is specific: Attorney Templeton failed to raise the patent Bangert violation (no maximum penalty advisement), failed to move to supplement the record with the missing motion hearing transcript, and failed to challenge the plea's voluntariness given the incomplete record. Each of these failures is objectively unreasonable because the deficiencies were apparent on the face of the record he possessed. Second, on the Machner hearing standard: the State mischaracterizes Bentley. That case requires 'sufficient material facts that, if true, would entitle the defendant to relief.' Mr. Price alleges the following facts: (1) security footage from Kelso's Bar existed and was in the State's possession; (2) defense counsel was aware of this footage as of the Status Conference; (3) Mr. Price expressed concern about the self-defense angle; (4) counsel advised a guilty plea that waived the self-defense claim; (5) there is no indication in any transcript that counsel reviewed the footage or discussed its contents with Mr. Price before advising the plea. These are not speculative—they are drawn directly from the transcripts before the Court. The missing piece—

maximum penalty information. More critically, under the Bangert framework, even if the colloquy was deficient, Mr. Price must first make a prima facie showing that he did not actually know or understand the information. He has alleged only that the transcript is silent—not that he was actually unaware of the 25-year maximum. That allegation is required before any burden shifts. Finally, on prejudice under Strickland and materiality under Brady: the defense asks for a Machner hearing to discover whether the footage was exculpatory. But a Machner hearing is not a discovery device—it requires a prima facie showing of deficiency and prejudice based on specific facts, not hope that investigation will reveal something helpful. Under State v. Bentley, the Court should deny a Machner hearing where the defendant fails to allege sufficient material facts that, if true, would entitle him to relief. The defense has not alleged what the footage showed, only what it 'might' show. That is insufficient. The State submits that this motion should be denied without a hearing because Mr. Price has failed to overcome the procedural bars and failed to make the prima facie showing required for an evidentiary hearing."

what the footage actually showed—is precisely what a Machner hearing would establish. Under State v. Machner itself, when the record is insufficient to determine what counsel knew and did, an evidentiary hearing is required. We are not asking the Court to presume the footage was exculpatory; we are asking for the opportunity to prove it. Third, on the incomplete transcript: the State bears responsibility for maintaining a complete record. Under Mayer v. City of Chicago, the constitutional right to appellate review includes the right to a record adequate for that review. The motion hearing transcript was incomplete at the time it was prepared—this was not defense counsel's failure to order it, but the court reporter's failure to transcribe it. When the State's agents create an incomplete record that prejudices a defendant's ability to challenge his conviction, the remedy is not to penalize the defendant for the gap. At minimum, when the missing portion contains the ruling on other-acts evidence that directly affected the plea decision, the defendant is entitled to a presumption that the missing ruling was adverse. This Court should either reconstruct the record, order a new hearing on the other-acts motion, or find that the incomplete record itself establishes cause and prejudice for the procedural default because Mr. Price could not

meaningfully appeal a ruling that does not appear in the record."

THE COURT

"I have several concerns that neither party has adequately addressed. Mr. Farrell, you argue the plea questionnaire 'would have contained' the maximum penalty information, but that document is not before me in this motion. If you're relying on it to meet your Bangert burden, you need to produce it or point me to where it appears in the record. I cannot presume facts in favor of the State when the burden has shifted. Ms. Ostrowski, the State makes a fair point about the Machner hearing standard. Under Bentley and Allen, you need more than speculation to warrant an evidentiary hearing. You've argued that 'if' the footage showed Mr. Okafor as the aggressor, prejudice would be manifest—but you haven't alleged that it actually showed that. Is there any evidence in this record, any proffer you can make, any affidavit from Mr. Price about what he observed or what counsel told him about the footage? Because without some factual basis, I'm being asked to order a hearing based on possibilities rather than allegations. I'm also troubled by the incomplete motion hearing transcript. Both parties seem to agree this is problematic, but neither has adequately addressed who bears the consequences of an incomplete record. Under State v. Perry, when the State loses or destroys evidence, we apply a balancing test considering the State's culpability and the materiality of the evidence. Does that framework apply to incomplete transcripts? And if the transcript was incomplete at the time of direct appeal, why wasn't that issue raised then? I want both parties to address the allocation of responsibility for this gap in the record."

Round 4

STATE STRENGTH: MODERATE

- **DEFENSE BURDEN**

> Defense must establish that the incomplete motion hearing transcript and security footage issues constitute sufficient cause to overcome Escalona-Naranjo, while providing specific factual allegations beyond speculation to

> warrant a Machner hearing.

THE STATE

"May it please the Court. The State maintains that this motion fails on multiple procedural grounds, and the defense's fourth-round arguments do not cure these fatal defects. First, on the Escalona-Naranjo bar: the defense now identifies Attorney Mark Templeton as appellate counsel and claims his failures constitute cause for the procedural default. But this Court has no documentation before it—no affidavit, no docket sheet, no certification. Defense counsel's representation from the podium is not evidence. More critically, even accepting this representation, the defense has failed to establish that Attorney Templeton's performance was deficient under Strickland. The defense claims Templeton 'failed to raise the patent Bangert violation,' but a strategic decision not to pursue plea withdrawal on direct appeal is entitled to deference. Perhaps Templeton concluded—reasonably—that the totality of circumstances showed Mr. Price understood the maximum penalty through counsel's discussions. Perhaps he determined that challenging an incomplete transcript without evidence of what the ruling contained was futile. Under State v.

THE DEFENSE

"Your Honor, let me address each issue in the order the Court has framed them. On Bangert and the plea questionnaire: the State's reliance on a document not in evidence is precisely the problem. The State bears the burden of proving voluntariness by clear and convincing evidence once a colloquy deficiency is established. That burden cannot be met by reference to documents the State has failed to produce. If the plea questionnaire exists and contains the maximum penalty advisement, the State should have attached it to its response to this motion. Its absence speaks volumes. As for Mr. Price's statement that he was 'satisfied' with counsel's explanations—that statement was made in the same colloquy that failed to advise him of the 25-year maximum. A defendant cannot knowingly waive a right he was never informed he possessed. Satisfaction with counsel is not the same as understanding the consequences of the plea; under Boykin, the record must affirmatively show the defendant understood each right being waived. It does not. On the Machner hearing standard: the Court asks for precedent where a hearing was granted based on the existence of

Thurow, appellate counsel is not required to raise every conceivable issue; counsel may strategically select the strongest arguments. The defense offers no affidavit from Templeton, no explanation of his reasoning, and no evidence his decisions were objectively unreasonable. Conclusory allegations of appellate IAC do not satisfy the sufficient reason requirement under Allen. Second, on the Machner hearing standard: the defense argues they have alleged 'sufficient material facts' under Bentley, but they have alleged only the existence of evidence—not its content. They state security footage existed, counsel knew about it, and Mr. Price was concerned about self-defense. But critically, they do not allege that the footage showed Mr. Okafor as the aggressor, that counsel failed to review it, or that Mr. Price would have insisted on trial had he known its contents. Under State v. Allen, a defendant must allege the five 'w's—who, what, where, when, why—with sufficient particularity. The defense's allegations establish 'who' (counsel), 'where' (Kelso's Bar), and 'when' (before the plea), but they do not establish 'what' (the footage's contents) or 'why' (counsel's reason for not using it). A Machner hearing is not a license to conduct discovery; it requires a prima facie showing that specific facts, if proven, would establish both deficiency and prejudice. The defense evidence without knowledge of its contents. In State v. Thiel, the Wisconsin Supreme Court held that when a defendant alleges counsel failed to investigate a potentially meritorious defense, the defendant need not prove what the investigation would have uncovered—only that a reasonable investigation would have been undertaken and that there is a reasonable probability it would have affected the outcome. Here, Mr. Price has alleged: (1) security footage existed from the scene of the alleged assault; (2) self-defense was a viable claim he wished to pursue; (3) counsel advised a plea waiving that defense; (4) there is no record evidence counsel ever reviewed the footage. Under Thiel and Strickland's duty to investigate, these allegations state a prima facie case. The content of the footage is precisely what the hearing would establish—and if it showed Mr. Okafor initiating physical contact, prejudice would be manifest because Mr. Price would have had a complete defense. On the incomplete transcript and competing presumptions: the Court correctly identifies the tension, but the resolution favors Mr. Price. The presumption of regularity under Polashek applies when the record is silent—when nothing suggests error occurred. Here, the record is not silent; it is affirmatively incomplete. We know a ruling was made on highly

asks this Court to order a hearing so they can find out whether they have a claim. That inverts the Bentley standard. Third, regarding the incomplete transcript: the defense seeks a presumption that the missing ruling was adverse, but Wisconsin law provides no such presumption. Under State v. Polashek, when a record is incomplete, the defendant bears the burden of demonstrating prejudice—the missing portion is presumed to support the judgment, not undermine it. The defense's reliance on Mayer v. City of Chicago is misplaced; that case addresses the right to a transcript for appeal, not a presumption of adversity when transcripts are incomplete. If the other-acts ruling was so critical to the plea decision, Mr. Price or his counsel could have requested reconstruction of the record, sought a statement of the proceedings under Rule 809.15, or raised the issue on direct appeal. They did none of these things. The consequences of that failure cannot now be shifted to the State years later in a collateral attack."

prejudicial other-acts evidence. We know Mr. Price was concerned about self-defense. We know he pleaded guilty shortly after this hearing. The inference that the ruling influenced the plea is not speculation—it is the natural reading of this sequence. Under these circumstances, the burden should not fall on the defendant to reconstruct a record the State's agents failed to preserve. At minimum, this Court should order the State to produce any notes, recordings, or recollections of the ruling, or permit testimony from counsel and the court reporter about what transpired. If reconstruction is impossible, the remedy is not to presume against the defendant who bears no fault for the gap—it is to grant relief or, at minimum, an evidentiary hearing to determine whether the incomplete record infected the voluntariness of the plea."

THE COURT

"Counsel, we are now four rounds into this argument, and I need to narrow the issues. Let me identify where I think we are. On the Bangert claim regarding maximum penalty advisement: Mr. Farrell, you referenced a plea questionnaire that 'would have contained' this information, but you have not produced it. If I find the colloquy transcript lacks this advisement—and it appears to—the burden shifts to you under Bangert. Can you meet that

burden without the questionnaire in evidence? And if the questionnaire exists, why isn't it before me? Ms. Ostrowski, conversely, your client stated under oath he was satisfied with counsel's explanations. Does that sworn statement undercut your claim that he didn't understand the consequences of his plea? On the Machner hearing question: I'm inclined to agree with the State that speculation about what evidence 'might show' is insufficient under Bentley. However, Ms. Ostrowski, you've argued that the very nature of an IAC claim—what counsel knew and did—requires extra-record development. Can you point me to any case where a Wisconsin court granted a Machner hearing based on allegations similar to yours, where the content of the evidence was unknown but its existence and potential relevance were established? Finally, on the incomplete transcript: both parties cite competing presumptions. The State invokes Polashek for the presumption of regularity; the defense invokes Mayer for the right to a complete record. I need to understand the limiting principles. If the missing transcript portion contains the ruling that allegedly drove the plea decision, how can I assess voluntariness without knowing that ruling? But if I presume adversity whenever a transcript is incomplete, don't I create perverse incentives for defendants to delay challenges until records degrade? How do I balance these concerns?"

Round 5

STATE STRENGTH: MODERATE

DEFENSE BURDEN

> Defense must establish that the incomplete record and alleged colloquy deficiencies constitute sufficient cause to overcome procedural default while making a prima facie showing of prejudice warranting a Machner hearing.

THE STATE

"May it please the Court. As we reach the final round of argument, the State submits that the defense has failed to carry its burden on every claim, and

THE DEFENSE

"Your Honor, I will address each procedural bar and then the Court's specific questions. On procedural default and appellate IAC: the State

the procedural bars remain insurmountable. First, on procedural default under Escalona-Naranjo: the defense has now had five rounds to establish cause for failing to raise these claims on direct appeal, and their showing remains deficient. They claim Attorney Templeton was ineffective for failing to raise the Bangert violation, but they have produced no affidavit from Templeton, no documentation of his strategic reasoning, and no evidence beyond counsel's representations from the podium. Under State v. Allen, ineffective assistance of appellate counsel as cause for procedural default requires the same Strickland showing—deficiency and prejudice. The defense has alleged neither with particularity. Moreover, under Murray v. Carrier, cause requires showing that 'some objective factor external to the defense impeded counsel's efforts.' Nothing external prevented Attorney Templeton from raising these issues; the transcripts existed, the deficiencies were apparent, and the choice not to raise them was a strategic decision entitled to deference under Thurow. Second, on harmless error and Strickland prejudice: even if this Court finds any constitutional violation, the defense cannot establish prejudice. Under Brecht v. Abrahamson, the question is whether the error had a 'substantial and

demands an affidavit from Attorney Templeton, but that puts the cart before the horse. A Machner hearing is precisely the mechanism for developing such testimony. What Mr. Price can allege—and has alleged—is that Attorney Templeton failed to raise patent Bangert violations visible on the face of the transcript, failed to challenge the incomplete motion hearing record, and failed to move for plea withdrawal based on the cumulative deficiencies. Under Carrier, cause exists when 'the factual or legal basis for a claim was not reasonably available.' Here, the factual basis for the IAC-trial-counsel claims was not reasonably available because it required extra-record investigation into what Ms. Ostrowski did with the security footage—something appellate counsel working from transcripts alone could not determine. The Bangert claim, admittedly, was available, and Templeton's failure to raise it is itself cause for the default of that specific claim. On harmless error and prejudice: the State's 'overwhelming evidence' argument ignores the self-defense context. Wisconsin law permits the use of force when a person reasonably believes it necessary to prevent death or great bodily harm. If security footage showed Mr. Okafor initiating physical aggression—grabbing Mr. Price, throwing the first punch, or

injurious effect' on the outcome. Here, Mr. Price faced overwhelming evidence of guilt: an eyewitness in Sandra Hewitt, documented injuries to the victim requiring surgery, and the defendant's own injury consistent with wielding the bottle. The State's other-acts evidence—whether admitted or not—was merely cumulative to this proof. Under Strickland, Mr. Price must show a 'reasonable probability' he would have insisted on trial and prevailed. He has shown neither. His sworn statement that he discussed self-defense 'a lot' with counsel and was 'satisfied' demonstrates informed decision-making, not coercion. The security footage speculation fails under Bentley because, after five rounds, the defense still cannot allege what it showed—only what it 'might' show. That is fatal to their prima facie case. Third, on the incomplete transcript: the State acknowledges this is an unfortunate gap, but the defense has identified no authority for shifting the consequences to the prosecution years after the fact. Under Polashek, incomplete records are presumed to support the judgment. The defense had remedies available—record reconstruction under Rule 809.15, contemporaneous objection, direct appeal—and pursued none. The time to challenge an incomplete record is when it is discovered, not in a collateral attack years later when brandishing a weapon—then Mr. Price had a complete defense regardless of the severity of the resulting injuries. The eyewitness Sandra Hewitt had a 'witness issue' according to the Final Pretrial transcript, the nature of which we do not know. Under these circumstances, the State cannot establish harmless error because the self-defense claim was never adjudicated on the merits. On the Court's specific question regarding the footage: Mr. Price can allege, and does allege through this motion, that counsel never discussed the contents of the security footage with him before advising the plea. He was told footage existed; he was not told what it showed. This is precisely the Strickland failure to investigate that Thiel addresses. As for Attorney Templeton and the incomplete transcript: the transcript was prepared by court reporters employed by the State. When state actors create an incomplete record, the defendant should not bear the consequences of being unable to challenge a ruling that does not appear in that record. At minimum, this Court should order an evidentiary hearing where Ms. Ostrowski, Attorney Templeton, and Mr. Price can testify about what occurred, what was communicated, and whether the plea was truly knowing and voluntary given these gaps. The constitutional stakes—a 25-

memories have faded and reconstruction is impossible. The State respectfully submits that this motion should be denied in its entirety."

year maximum sentence—demand no less."

THE COURT

"Counsel, let me be direct about where this case stands after five rounds of argument. Mr. Farrell, I remain troubled by the Bangert issue. You have repeatedly referenced a plea questionnaire that would cure the colloquy deficiency, but it is not before me. Under Bangert, once the defendant shows the court failed a mandatory duty—and the transcript's silence on maximum penalties appears to establish that—the burden shifts to the State. You cannot meet that burden with documents you have not produced. I am also not persuaded by your Polashek argument regarding the incomplete transcript. Polashek addresses silent records, not affirmatively truncated ones. When a transcript cuts off mid-sentence during a ruling that may have influenced the plea, that is not silence—that is a gap in the constitutional record. How do you distinguish these situations? Ms. Ostrowski, the State makes a fair point about the passage of time and available remedies. If the transcript was incomplete at the time of direct appeal, why didn't Attorney Templeton move to reconstruct the record or raise the incomplete record as a separate issue? Your ineffective assistance of appellate counsel claim requires you to show Templeton's failure was objectively unreasonable, not merely that he made a choice you now disagree with. And on the Machner hearing, I need you to grapple with Bentley's requirement of 'sufficient material facts.' You have alleged the existence of footage and counsel's awareness of it, but you have not alleged —even on information and belief—what it showed or that counsel failed to review it. Is there any proffer you can make, any statement from Mr. Price about what counsel told him regarding the footage?"

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